

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 10
Honorable Mark D. Flanagan
(Covering for Honorable Jeffrey B. El-Hajj)**

B. Than, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2228

DATE: August 4, 2026 TIME: 9:00 & 9:01 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

**You must also inform all parties before 4:00 P.M. the day prior to the hearing
that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be
adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.D.)**

LINE #	CASE #	CASE TITLE	RULING
		9:01 CALENDAR	
9:01 LINE 1	22CV404542	Nora Emadi et al. v. Essex Property Trust, Inc. et al.	Parties to appear.

- oo0oo -

Calendar Line 1

Case Name: *Gonzalo Petrez v. General Motors, LLC, et al.*

Case No.: 24CV447989

This is a case brought under the Song-Beverly Consumer Warranty Act (the “Act” or “Lemon Law”) for failure to repair in a timely manner (Second Cause of Action; Civil Code § 1793.2(b)) and failure to replace the vehicle or reimburse the buyer after a reasonable number of attempts to repair (First Cause of Action; Civil Code § 1793.2(d)). Plaintiff also alleges a claim for violation of Civil Code § 1793.2(a)(3), alleging that Defendant General Motors, LLC (“GM”) “failed to make available to its authorized service and repair facilities sufficient service literature and replacement parts during express warranty period,” which Plaintiff claims was willful. Complaint, ¶¶ 32-33.

Fundamentally, Song-Beverly established a statutory framework for enforcing express and implied warranties of motor vehicles in the state, and imposed civil penalties for manufacturers who “willfully” fail to satisfy their obligations under the Act.

In this motion, Plaintiff seeks to compel two broad categories of requests from its first set of requests for productions (“RFPs”):

1. Documents relating to GM’s internal investigations and analyses of the “Transmission Defect plaguing Plaintiff’s vehicle and establishing that Defendant knew of such defects but nevertheless refused to repurchase the vehicle” (RFPs 16-21, 59)(hereinafter referred to as “Category One Requests”), and
2. Documents “relating to Defendant’s warranty and vehicle repurchase policies, procedures, and practices (RFPs 7, 34-39, 42, 50) (hereinafter referred to as “Category Two Requests”).

Defendant opposes the motion, claiming, *inter alia*, that the requests seek irrelevant information, and are overbroad and burdensome.

The briefing in this case is characterized by excessive vitriolic rhetoric by both sides. Plaintiff claims, without citation, that GM “routinely” responds to discovery in an “obstructionist, bad faith manner.” Motion at 1. For its part, GM claims that “Plaintiff is playing games,” and contends that in unidentified cases, Lemon Law Plaintiffs are swamping courts “with these extraordinarily broad, apparently standard or stock discovery requests that are being pulled out of the back pockets of plaintiffs’ counsel.” Keshishian Decl., ¶ 9.